

Terms and Conditions of Sale

Sale of original artworks and fine-art prints

Preamble

The works are created by Cédric Taldu, painter and draughtsman, registered with the Maison des artistes under no. T174380, SIRET: 495 376 436 00046.

VAT not applicable, article 293 B of the French General Tax Code.

The works are created by Cédric Taldu, a living artist. As such, their acquisition by a company subject to corporation tax or to income tax under an actual-profit regime may give entitlement to a tax deduction under article 238 bis AB of the French General Tax Code, a scheme extended until 31 December 2028. The deduction is spread in equal instalments over five years, subject to compliance with the conditions set out in that text, in particular the entry of the work as a fixed asset and its display in a place accessible to the public or to employees for five years. It is the acquiring company's responsibility to check its eligibility with its tax adviser.

The photographs of the works shown on the site are not contractual. Each work has photographs and a description that are as faithful as possible. The Artist cannot guarantee a perfect likeness, in particular regarding colours, the shades of the ink and the rendering of the paper. The staged presentations of the works are display suggestions and do not always correspond exactly to the work delivered.

The acquisition of a work of art confers on its purchaser no right of representation, distribution or reproduction. The Artist retains all rights over their creation. Any use of the visual of the works must be the subject of a written authorisation request. All elements of the cedrictaldu.com site remain the exclusive intellectual property of the Artist.

Article 1 — Purpose and general provisions

These Terms and Conditions of Sale determine the rights and obligations of the Artist and of the consumer in connection with the sale of works offered by the Artist.

The Artist reserves the right to amend these terms at any time by publishing a new version on the site. The applicable terms are those in force on the date of payment of the order. They may be consulted on cedrictaldu.com.

The consumer declares that they have read all of these Terms and Conditions of Sale and accept them without restriction.

The works offered are of two kinds. Original works are unique pieces, made by hand, signed by the Artist and accompanied by a certificate of authenticity. Fine-art prints are limited-edition reproductions, numbered and signed, the number of copies of which is stated on each print's page.

An original work that has been sold is no longer available. The Artist ensures that any piece sold is withdrawn from sale.

Article 3 — Placing an order

The consumer places an order online on the site, or sends their wish to acquire a work to the Artist. An invoice is issued. On receipt of payment, the work is prepared and protected with the utmost care.

Article 4 — Prices and payment

Prices are shown in euros, all taxes included, excluding delivery costs. The consumer makes payment by bank card through a secure payment solution, by bank transfer or by cheque.

The Artist reserves the right to change prices at any time. Works are invoiced on the basis of the rates in force at the time of the order. The order is processed once payment has been effectively received.

Article 5 — Transfer of ownership

The Artist remains the owner of the work sold until full payment of the order. The consumer becomes responsible for the work upon its delivery. The transfer of the risks of loss or deterioration takes place on receipt of the work by the consumer.

Article 6 — Shipping and delivery

The order is shipped within 7 working days of receipt of payment, unless otherwise indicated for exceptional reasons, such as the Artist's holidays.

Delivery is made by post to the address indicated by the consumer when ordering. The consumer undertakes to provide truthful identification details and address. Delivery costs are shown before the order is confirmed.

For shipments outside metropolitan France, customs duties, local taxes, import duties or other charges may be payable. These sums are not the responsibility of the Artist and are borne exclusively by the consumer.

Delivery times may vary according to the carrier's conditions. The Artist cannot be held liable for any extension of these times, which cannot give rise to damages, refund or cancellation.

The Artist endeavours to protect the works as well as possible against the shocks of transport. In the event of damage occurring during transport, the consumer must submit their claims to the carrier. For any work of significant value, the Artist recommends insured shipping, the terms of which are agreed before dispatch.

In accordance with articles L.221-18 et seq. of the French Consumer Code, the consumer has a period of 14 days from receipt of the work to exercise their right of withdrawal, without having to give reasons for their decision.

The consumer informs the Artist of their decision by email to contact@cedrictaldu.com, or by post to the following address: Cédric Taldu — 25 allée des Lilas — 80470 Dreuil-lès-Amiens — France.

The work is returned in its original packaging, in perfect condition, within 14 days following notification of the decision to withdraw. The work travels at the consumer's risk. Return costs are borne exclusively by the consumer.

The refund is made within 14 days of recovery of the work, subject to its perfect condition. A work returned damaged, soiled or depreciated by handling on the part of the consumer may give rise to a reduction of the refund, in proportion to the depreciation observed.

In the context of a direct sale between the Artist and the consumer, in particular at a fair, show or exhibition, the right of withdrawal does not apply.

Article 8 — Warranties

The works benefit from the legal warranty of conformity provided for in articles L.217-3 et seq. of the French Consumer Code, as well as from the legal warranty against hidden defects provided for in articles 1641 et seq. of the French Civil Code.

These warranties are excluded in the event of misuse, negligence, lack of maintenance, normal wear, accident or force majeure.

In the event of an error resulting in the delivery of a work not conforming to the order, the consumer may request, subject to availability, exchange for the correct work, a work of equivalent value, or a refund of the sums paid, without being able to claim any additional compensation.

Article 9 — Protection of personal data

In accordance with the General Data Protection Regulation and the French Data Protection Act of 6 January 1978 as amended, the consumer has rights of access, rectification, erasure, objection and portability over their personal data.

The information provided by the consumer is processed solely for the performance of their order and is not transferred to any third party. It is kept for the time necessary for that performance and for compliance with the Artist's legal obligations.

Unless the consumer objects, their email address may be kept in order to inform them of the exhibitions and events in which the Artist takes part. The consumer may exercise their rights by writing to contact@cedrictaldu.com.

All content of the cedrictaldu.com site is protected by intellectual property law. The consumer undertakes not to reproduce, copy, republish, transmit, sell or distribute this content without the written authorisation of the Artist.

The Artist holds the copyright, both economic and moral, over their creations, within the meaning of articles L.111-1 et seq. of the French Intellectual Property Code. The rights of representation and reproduction of the works belong to the Artist. The consumer's rights over their acquisitions are limited to a right of private use, excluding any right of representation and reproduction.

Article 11 — Right of reservation

The Artist reserves the right to refuse or cancel any order from a consumer with whom a payment dispute is ongoing, or for any abnormal request or one made in bad faith.

Article 12 — Force majeure

The performance of the Artist's obligations is suspended in the event of a fortuitous event or force majeure that would prevent its performance. The Artist informs the consumer as soon as possible.

Article 13 — Complaints, mediation and dispute resolution

In the event of any difficulty relating to an order, the consumer is invited first to send a written complaint to the Artist: Cédric Taldu, 25 allée des Lilas, 80470 Dreuil-lès-Amiens — France. Email: contact@cedrictaldu.com.

In the absence of an amicable resolution of the complaint, the consumer may have free recourse to the consumer mediator to whom the Artist is affiliated. Failing an amicable agreement or in the absence of a reply within a reasonable period of one month, the consumer within the meaning of article L.612-2 of the French Consumer Code may refer the matter free of charge to the competent mediator, namely: La Société Médiation Professionnelle, www.mediateur-consommation-smp.fr, Alteritae, 5 rue Salvaing, 12000 Rodez.

A request for mediation may only be submitted after a prior written complaint sent to the Artist and subject to compliance with the admissibility conditions set by the mediator.

These Terms and Conditions of Sale and the contracts concluded between the Artist and the consumer are governed by French law. Failing amicable resolution or mediation, the dispute falls within the jurisdiction of the competent courts under the ordinary rules of law.

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